



General Assembly

February Session, 2026

Raised Bill No. 5535

LCO No. 3010



Referred to Committee on JUDICIARY

Introduced by:
(JUD)

***AN ACT CONCERNING THE DUTIES OF THE OFFICE OF THE
CLAIMS COMMISSIONER AND REVIEW OF WRONGFUL
INCARCERATION AWARDS BY THE GENERAL ASSEMBLY.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 4-142 of the general statutes is repealed and the
2 following is substituted in lieu thereof (*Effective October 1, 2026*):

3 (a) There shall be an Office of the Claims Commissioner which shall
4 hear and determine all claims against the state except: (1) Claims for the
5 periodic payment of disability, pension, retirement or other
6 employment benefits; (2) claims upon which suit otherwise is
7 authorized by law including suits to recover similar relief arising from
8 the same set of facts; (3) claims for which an administrative hearing
9 procedure otherwise is established by law; (4) requests by political
10 subdivisions of the state for the payment of grants in lieu of taxes; and
11 (5) claims for the refund of taxes.

12 (b) The Office of the Claims Commissioner shall consist of the Claims
13 Commissioner, and, within available appropriations, the Deputy
14 Claims Commissioner, not more than six special deputies and such

15 administrative staff as may be provided by the Department of
16 Administrative Services. The Claims Commissioner, the Deputy Claims
17 Commissioner, or a special deputy assigned to assist the Claims
18 Commissioner pursuant to section 4-142b shall hear and determine all
19 claims against the state, except as otherwise provided in subsection (a)
20 of this section. Such claims shall be heard and determined in accordance
21 with the rules prescribed by the Claims Commissioner pursuant to
22 section 4-157, except as may be provided in section 4-160.

23 (c) Notwithstanding the provisions of subdivision (2) of subsection
24 (a) of this section, if a claim against the state upon which suit is
25 authorized pursuant to a provision of the general statutes is improperly
26 filed, on or after October 1, 2026, with the Office of the Claims
27 Commissioner when such claim should have been filed in the Superior
28 Court, the Claims Commissioner may retain jurisdiction over and
29 decide such claim if such claim seeks money damages not in excess of
30 fifteen thousand dollars. Any appeal of a decision rendered by the Office
31 of the Claims Commissioner in a matter decided pursuant to this
32 subsection shall be filed with the Appellate Court in accordance with
33 the ordinary rules of appellate procedure, not later than twenty days
34 after the date on which the decision is rendered by the Office of the
35 Claims Commissioner.

36 Sec. 2. Subdivision (1) of subsection (d) of section 54-102uu of the 2026
37 supplement to the general statutes is repealed and the following is
38 substituted in lieu thereof (*Effective July 1, 2026*):

39 (d) (1) If the Claims Commissioner determines that such claimant has
40 established such claimant's eligibility under subsection (a) of this section
41 by a preponderance of the evidence, the Claims Commissioner shall
42 order the immediate payment to such claimant of compensation for
43 such wrongful incarceration in an amount determined pursuant to
44 subdivision (2) of this subsection, unless (A) such compensation award
45 is in an amount exceeding thirty-five thousand dollars, or (B) such
46 claimant requests, in accordance with section 4-158, that the General

47 Assembly review such compensation award. The Claims Commissioner
48 shall submit any such compensation award described in subparagraph
49 (A) or (B) of this subdivision or an agreed to or stipulated award
50 pursuant to subsection (f) of this section in an amount greater than one
51 million five hundred thousand dollars, and the claim from which such
52 award arose to the General Assembly in the same manner as provided
53 under section 4-159, not later than five business days after the
54 commissioner issues such award determination or receives such request
55 for review, whichever is sooner. The General Assembly shall review any
56 such compensation award and the claim from which such award arose
57 not later than [forty-five] sixty days after such award and claim is
58 submitted to the General Assembly and may deny or confirm such
59 compensation award, or remand the claim to the Office of the Claims
60 Commissioner for such further proceedings as the General Assembly
61 may direct. If the General Assembly takes no action on such
62 compensation award, the determination made by the Claims
63 Commissioner shall be deemed confirmed.

This act shall take effect as follows and shall amend the following sections:		
Section 1	<i>October 1, 2026</i>	4-142
Sec. 2	<i>July 1, 2026</i>	54-102uu(d)(1)

Statement of Purpose:

To (1) permit the Office of the Claims Commissioner to hear and decide certain claims for money damages not in excess of fifteen thousand dollars, and (2) extend the time period for review of wrongful incarceration awards by the General Assembly.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]